



COMMONWEALTH OF PENNSYLVANIA
GOVERNOR'S OFFICE OF GENERAL COUNSEL

June 26, 2026

VIA EMAIL: Ajmail.matin@gmail.com

Ajmail Matin
943 Sheridan Ave
Pittsburgh, PA 15206

Re: RTKL 2026-078

Dear Mr. Matin,

On April 7, 2026, the open-records officer of the Department of Community and Economic Development (the "Department") received your written request for records. The Department is responding to your request under the Pennsylvania Right-To-Know Law, 65 P.S. § 67.101 *et seq.* (the "RTKL"). A copy of your original request is attached. You agreed in writing to an extension until June 26, 2026 to receive from the Department a final response and records.

Per section 102 of the RTKL, the definition of "privilege" includes the attorney-work product doctrine and the attorney-client privilege. 65 P.S. § 67.102.

Per section 305, a record in the possession of a Commonwealth agency or local agency shall be presumed to be a public record. The presumption shall not apply if: (1) the record is exempt under section 708; (2) the record is protected by a privilege; or (3) the record is exempt from disclosure under any other Federal or State law or regulation or judicial order or decree. 65 P.S. § 67.305.

The attorney client privilege prohibits the disclosure of confidential client-to-attorney and/or attorney-to-client communications made for the purpose of obtaining or providing legal advice. *See Mwambu v. Monroeville Volunteer Fire Co.*, 276 A.3d 1217 (Pa. Cmwlth. 2022); *Pa. Dep't of Educ. v. Bagwell*, 131 A.3d 638 (Pa. Cmwlth. 2016); *Dages v. Carbon Cty.*, 44 A.3d 89 (Pa. Cmwlth. 2012); *Nationwide Mut. Ins. Co. v. Fleming*, 924 A.2d 1259, 1263 (Pa. Super. 2007), *aff'd by an equally divided court*, 605 Pa. 468, 992 A.2d 65 (2010). "[F]ull and frank communication between attorney and client is necessary for sound legal advocacy and advice, which serve the broader public interests of 'observance of law and administration of justice.'" *Dages v. Carbon Cty.*, 44 A.3d 89 (Pa. Cmwlth. 2012). In Pennsylvania, the attorney client privilege has been codified in Sections 5916 and 5928 of the Judicial Code, 42 Pa.C.S. §§ 5916 and 5928. Under the Law, an agency may not exercise its discretion to release privileged information. Section 506(c)(2) of the Law, 65 P.S. § 67.506(c)(2); *Levy v. Senate of Pa.*, 34 A.3d 243 (Pa. Cmwlth. 2011).

The attorney work product doctrine prohibits the disclosure of the mental impressions of a party's attorney or his or her conclusions, opinions, memoranda, notes or summaries, legal research or legal theories, regardless of whether the work product was prepared in anticipation of litigation. See *DeMasi v. Upper Darby Twp.*, OOR Dkt. AP 2025-0596; *Bousamra v. Excelsa Health*, 210 A.3d 967, 976 (Pa. 2019); *Heavens v. Pa. Dep't of Env't Prot.*, 65 A.3d 1069, 1077 (Pa. Cmwlth. 2013); *Benefield v. Pa. Dep't of State*, OOR Dkt. AP 2021-0728, 2021 PA O.O.R.D. LEXIS 762; *Bailey v. Pennridge Sch. Dist.*, OOR Dkt. AP 2021-1085, 2021 PA O.O.R.D. LEXIS 1329.

Section 703 of the RTKL mandates that a written request should identify or describe the records sought with sufficient specificity to enable the agency to ascertain which records are being requested. 65 P.S. § 67.703. To be sufficiently specific, a RTKL request should have (1) a subject matter that identifies the "transaction or activity" or the agency about which records are sought, (2) should identify a limited scope of responsive records, and (3) should have a finite timeframe. The broader each element is, the less likely a court will find a RTKL request to be specific. 65 P.S. § 67.703; *Pa. Dep't of Educ. v. Pitts. Post-Gazette*, 119 A.3d 1121 (Pa.Cmwlth. 2015); *Askew v. Off. of the Gov.*, 65 A.3d 989 (Pa.Cmwlth. 2013); *Pa. State Police v. Zloczower*, 2011 Pa. Commw. Unpub. LEXIS 822 (Pa.Cmwlth. 2011); *Mollick v. Worcester Twp.*, 32 A.3d 859 (Pa.Cmwlth. 2011); *Pa. State Police v. Off. of Open Records*, 995 A.2d 515 (Pa.Cmwlth. 2010).

Section 703 of the RTKL precludes requests which require "files to be reviewed and judgments made as to the *relation* of the documents to the specific request." Rather, "a clearly-defined universe of documents" must be requested such that "[t]here are no judgments to be made as to whether the documents are 'related' to the request" because the documents either do or do not fall within the ambit of the request. 65 P.S. § 67.703; *In re: Appeal of Mazin*, 2025 Pa. Commw. Unpub. LEXIS 190 at pp. 8-13 (Pa. Cmwlth. April 21, 2025); *Lambert v. Off. of the Att. Gen.*, 2015 Pa. Commw. Unpub. LEXIS 120 at p. 6 (Pa. Cmwlth. 2015), citing *Dep't of Env. Prot. v. Legere*, 50 A.3d 260, 264 (Pa. Cmwlth. 2012); *Pitts. Post-Gazette* at 1125-1126.

In accordance with section 703 of the RTKL, the Pennsylvania Commonwealth Court has held that a RTKL request that obliges legal research is not a request for specific documents, but rather is a request that someone conducts legal research with the hopes that such research will unearth relevant documents that fits the description of the request. 65 P.S. § 67.703. The Court held that a RTKL request which requires an agency to determine whether a particular law and/or document possesses the legal significance necessary to make it responsive to the RTKL request lacks specificity per Section 703 of the RTKL. 65 P.S. §67.703; *Askew* at 993; *Donahue v. Pa. Dept. of Labor & Indus.*, 2014 Pa. Commw. Unpub. LEXIS 593 at 14.

Per section 705 of the RTKL, when responding to a request for access, an agency shall not be required to create a record which does not currently exist or to compile, maintain, format or organize a record in a manner in which the agency does not currently compile, maintain, format or organize the record. 65 P.S. § 67.705.

Per section 706 of the RTKL, if an agency determines that a public record contains information which is subject to access, as well as information which is not subject to access, the agency's response shall grant access to the information which is subject to access and deny access to the information which is not subject to access. 65 P.S. § 67.706.

Per section 708 of the RTKL, personal email addresses, personal phone numbers, and signatures are exempt from record productions as personal identification information. 65 P.S. §

67.708(b)(6)(i)(A); *See Off. of the Gov. v. Raffle*, 65 A.3d 1105 (Pa. Commw. Ct. 2013); *Off. of Lt. Gov. v. Mohn*, 67 A.3d 123 (Pa. Commw. Ct. 2013); *Murray v. Pa. Dep't of Health*, OOR Dkt. AP 2017-0461, 2017 PA. O.O.R.D. LEXIS 1361.

Per section 708 of the RTKL, exempt from disclosure are records that reflect the internal, predecisional deliberations of an agency, its members, employees or officials or predecisional deliberations between agency members, employees or officials and members, employees or officials of another agency, including predecisional deliberations relating to a budget recommendation, legislative proposal, legislative amendment, contemplated or proposed policy or course of action or any research, memos or other documents used in the predecisional deliberations. 65 P.S. § 67.708(b)(10); *See LaValle v. OGC*, 769 A.2d 449 (Pa. 2001); *McGowan v. Pa. Dep't of Env'tl. Prot.*, 103 A.3d 374 (Pa. Commw. Ct. 2014); *Pannozza & QVC v. DCED*, 2023 PA O.O.R.D. LEXIS 2899, Dkt. No. AP 2023-1999.

Your request is DENIED. 65 P.S. § 67.703; *See Pitts.*; *Askew*; *Zloczower*; *Mollick*; *Pa. State Police*; *Mazin* at 8-13; *Lambert* at 6; *Legere* at 265; *Pitts. Post-Gazette* at 1125-1126; *Donahue* at 14; *Engelkemier*; *Iverson*; *Mollick*; *Hussey*; *Slaby*.

Enclosed, as an accommodation, please find numerous pages of records which may interest you. There is no charge for these records. Please let me know immediately if you can't access the records.

Also enclosed as an accommodation, please find a word document containing a number of website locations referenced in this final response for your convenience.

As a final accommodation, please note that the two recusal documents included in the record production are used as authority documents for other non-specifically named recusals, in that such recusals were drawn up to encompass other similarly-situated situations and to be utilized as such thereafter.

Please note that the Department supplying to you such accommodations does not act to waive the Department's right to claim exemptions regarding past, current, and/or future RTKL requests for records.

Your request is DENIED because the request does not satisfy the necessary three prongs for specificity and is not specific enough to enable the Department to ascertain which records are being requested, especially as to 'All documentation regarding the recusal of Rick Siger ... or *related* innovation and technology funding programs, including...', 'Email communications referencing said recusal', 'Meeting notes or minutes documenting recusal', 'Compliance records showing adherence to recusal', 'Ethics review or legal opinions regarding conflicts of interest', 'Conflict of interest disclosure forms filed by Rick Siger', 'All records establishing... Siger ... employment ... recusal ... effective ... entities, programs, or funding decisions ... modifications, expansions, or terminations ... participation (or documented non-participation) ...', 'Funding allocation decisions for ... or *related* entities' and 'Contract negotiations or renewals ...', 'Policy discussions regarding state innovation intermediaries', 'Performance reviews or audits of innovation funding recipients', 'PA SITES program decisions affecting entities in which Siger may have a conflict', 'Regional Challenge grants or Build Back Better Challenge implementation touching the above entities' and 'All communications sent or received ... where *related* to DCED funding, policy, or programs'. 65 P.S. § 67.703. *See Pitts.*; *Askew*; *Zloczower*; *Mollick*; *Pa. State Police*. The scope of the request is basically every possible type of document requester can

envision, which does nothing to narrow the scope of the request. Missing from the request are transactions and/or activities of the Department, rather, you simply seek every possible document regarding any possible subject matter. The lack of scope of records and missing transactions/activities of the Department, coupled with a three-and-a-half-year timeframe makes the request too broad to ascertain specific records. 65 P.S. § 67.703. *See Pitts.; Askew; Zloczower; Mollick; Pa. State Police.*

Your request is also DENIED because the Department need not make judgments as to the *relation* of documents to the specific request, especially as to “All documentation regarding the recusal of Rick Siger ... or *related* innovation and technology funding programs, including...’, ‘Funding allocation decisions for ... or *related* entities’, and ‘All communications sent or received ... where *related* to DCED funding, policy, or programs’. Rather, “a clearly-defined universe of documents” must be requested such that “[t]here are no judgments to be made as to whether the documents are ‘related’ to the request” because the documents either do or do not fall within the ambit of the request. 65 P.S. § 67.703. *Mazin* at 8-13; *Lambert* at 6; *Legere* at 265; *Pitts. Post-Gazette* at 1125-1126.

Your request is also DENIED because it mandates that the Department conducts legal research to determine whether the conditions established in the request have been fulfilled in order to respond to your request, especially as to the above-referenced *relating to* analysis, ‘All documentation regarding the recusal of Rick Siger ... from matters concerning ... or *related* innovation and technology funding programs, including ...’, ‘Written recusal statements or memoranda’, ‘Email communications referencing said recusal’, ‘Meeting notes or minutes documenting recusal’, ‘Compliance records showing adherence to recusal’, ‘Ethics review or legal opinions regarding conflicts of interest’, ‘Conflicts of interest disclosure forms filed by Rick Siger’, ‘The date any recusal became effective’, ‘The specific entities, programs, or funding decisions from which Rick Siger recused himself’, ‘Any modifications, expansions, or termination of recusal obligations’, ‘[a]ll records showing Rick Siger’s participation (or documented non-participation due to recusal) in: Funding allocation decisions ... *related* entities’, ‘Contract negotiations or renewals ...’, and ‘Policy discussions regarding state innovation intermediaries’, ‘Performance reviews or audits of innovation funding recipients’, ‘PA SITES program decisions affecting entities in which Siger may have a conflict’, ‘Regional Challenge grants or Build Back Better Challenge implementation touching the above entities’, and ‘All communications sent or received by Rick Siger ... (where *related* to DCED funding, policy, or programs)’. 65 P.S. § 67.703. *See Askew* at 993-994; *Donahue* at 14.

If a tribunal and/or court disagrees with the above specificity arguments, the Department reserves the right to claim other exemptions to the production of records, including sections 705, 706, 708 of the RTKL, the attorney client privilege, and the attorney work product privilege. 65 P.S. §§ 67.705, 67.706, 67.708(b)(6)(i)(A) and (10). *See OOR Final Determinations and Pennsylvania caselaw* referenced below.

If a tribunal and/or court disagrees with the above specificity arguments, the Department argues that your request is also partially DENIED because any categories of requested records not supplied by the Department do not exist in its possession, under its custody and/or under its control and the Department needs not create records that don’t already exist in its possession in order to respond to a

RTKL request; **categories of requested records not included with responsive records supplied by the Department do not exist.** 65 P.S. § 67.705.

Specific to meeting minutes, there exist no publicly indexed meeting minutes of its affiliated board specifically discussing and/or formalizing recusals for Secretary Rick Siger; however, meeting minutes for boards Secretary Siger chairs or serves on, for example, CFA and PIDA, are posted publicly and provided to you on the enclosed word document (for your convenience). These minutes are published to record board votes, approvals, and general administrative actions, rather than conflict-of-interest disclosures or recusal details of individual board members. In addition to records provided in this record production, the Department directs you to the Pennsylvania State Ethics Commission as to conflict-of-interest filings (also provided to you on the enclosed word document (for your convenience)). 65 P.S. § 67.705.

If a tribunal and/or court disagrees with the above specificity arguments, the Department argues that your request is also partially DENIED because the responsive records require redaction of personal email addresses, personal phone numbers, and signatures in accordance with sections 706 and 708 of the RTKL. 65 P.S. §§ 67.706 and 67.708(b)(6)(i)(A); *See Raffle; Mohn; Murray*.

If a tribunal and/or court disagrees with the above specificity arguments, the Department argues that your request is also partially DENIED because the requested records include records reflecting internal, predecisional deliberations and items used in internal, predecisional deliberations of the Department prior to decisions on the matter as to next steps. 65 P.S. §§ 67.706 and 67.708(b)(10); *LaValle; McGowan; Pannozza*. The future tweets referenced were redacted as items used in predecisional deliberations. The draft Conflict of Interest Protocols referenced were removed as items used in predecisional deliberations. Anytime the body of an email was redacted, it was due to reflecting internal, predecisional deliberations prior to a decision on the matter as to next steps. 65 P.S. §§ 67.706 and 67.708(b)(10); *LaValle; McGowan; Pannozza*.

If a tribunal and/or court disagrees with the above specificity arguments, the Department argues that your request is also partially DENIED because the requested records include some email records which include attorneys and are protected by the attorney client privilege and/or the attorney work product privilege. If an attorney was supplying mental impressions or his or her conclusions, opinions, memoranda, notes or summaries, legal research or legal theories in the email, such portions were redacted under the attorney work product privilege. If a client sought legal advice from his/her attorney or if the attorney was communicating with his or her client to provide legal advice, such portions were redacted under the attorney client privilege. 65 P.S. §§ 67.102, 67.305, and 67.706; *DeMasi; Bousamra; Heavens; Benefield; Bailey; Mwambu; Bagwell; Dages; Fleming; Levy*.

You have a right to appeal this final response in writing to Liz Gerloff Wagenseller, Executive Director, Office of Open Records (OOR), 555 Walnut Street, Suite 605, Harrisburg, Pennsylvania 17101. If you choose to file an appeal, you must do so within 15 business days of

the mailing date of this response and send to the OOR: 1) this response; 2) your request; and 3) the reason why you think the agency is incorrect in its response. Also, the OOR has an appeal form available on the OOR website at: <https://www.openrecords.pa.gov/Appeals/AppealForm.cfm>.

If you have any questions regarding this letter, please contact me at shkerns@pa.gov.

Sincerely,

/s/ Shawn Kerns

Shawn Kerns

Interim Agency Open Records Officer

Enclosure: pdfs of records, your request